Mobile communication

Ericsson and Wiko agree on patent licence

Ericsson and French mobile phone company Wiko have apparently agreed on a licence agreement and settled their patent dispute before the Mannheim and Düsseldorf Regional Courts. JUVE Patent heard that all ten lawsuits against Wiko were withdrawn yesterday. Exact details of the settlement are currently unknown.

7 June 2019 by Mathieu Klos

FRAND Germany Mobile Communication

The Federal Court of Justice in Germany has declared a non-essential patent owned by Pholips invalid. The patent concerns technology for smart phone screens ©Piman Khrutmuang/ADOBE STOCK

Following the news that Ericsson and Wiko have agreed on a patent licence, the Düsseldorf Regional Court confirmed that Ericsson has withdrawn four suits over standard essential patents, and two suits over implementation patents. The court planned to announce its verdicts in the latter two proceedings yesterday. These were likely to be a suspension of proceedings pending the vailidity of the patents.

The court intended to rule on the four SEP lawsuits at the end of June. In addition, the Regional Court Mannheim had also planned to announce its decisions in four further SEP disputes at the end of this month.

Judgments forestalled

Wiko and Ericsson have now pre-empted the rulings in the SEP disputes by means of a comprehensive settlement. Sources say the settlement was signed on Wednesday. It is unclear whether the course of the oral hearings and imminent announcements of the decisions, or rather strategic considerations, motivated the parties to settle. Exact details of the settlement are also unknown.

At the end of August 2017, Ericsson sued the French mobile phone manufacturer for infringing eight patents. Four patents relate to the LTE standard, and four patents relate to older mobile communications standards. Two lawsuits in Düsseldorf are based on so-called implementation patents. In some cases, the patents were combined into one action (case ID Düsseldorf: 4c O 64/174b 0 104/17, 4b O 105/17; Mannheim: 2 O 144/17).

Google was involved as co-litigant in the proceedings concerning an implementation patent (case ID: 4b 0 104/17).

But the conflict has been smouldering for a long time. Ericsson demanded Wiko take a licence for its IP portfolio because, according to Ericsson, the French company had been using the patents for six years without a licence. This was unsuccessful, however, and so Ericsson took Wiko to court in Germany.

Established relationships

Throughout Europe, Wiko is currently one of the most frequently-sued companies for mobile phone patents. Philips has also prosecuted Wiko and other mobile phone manufacturers. The series of proceedings has taken place before German, French and Dutch courts. Proceedings have also taken place in the UK.

A team from Vossius & Partner, led by Düsseldorf partner Andreas Kramer, accompanies the German proceedings in both cases. Kramer brought the 2018 instruction from his previous firm, Arnold Ruess. In the meantime, however, Munich patent litigators and patent attorneys are also working for Wiko.

Due to the complexity of the lawsuits, Wiko relied on the patent attorneys from Samson & Partner. The group is experienced in mobile phone patents.

Ericsson and its German litigators from Kather Augenstein also have an established relationship. The Düsseldorf IP litigation firm, together with Hoffmann Eitle's patent attorneys, had already represented the Swedish company in a large wave of legal proceedings against Apple in 2015.

Andreas Kramer

For Ericsson

Kather Augenstein (Düsseldorf): Christof Augenstein, Peter Kather, Miriam Kiefer, Alexander Haertel, Sören Dahm, Nina Belbl, Jonas Block, Benjamin Rätz, Carsten Plaga

Hoffmann Eitle (Munich): Veit Frank, Georg Siegert, Stefan Mayrhofer (all patent attorneys)

In-house: Robert Earle (Dallas), Andreas Tonscheidt, Gabriele Mohsler (both Herzogenrath)

For Wiko

Vossius & Partner(Düsseldorf, Munich):Andreas Kramer, Georg Rauh, Moritz Bloser, Hannes Obex, Leonie Dißmann-Fuchs (all lawyers), Rainer Viktor, Josef Schmidt, Christian Sandweg, Thomas Schwarze (all patent attorneys)

Samson & Partner: Cletus von Pichler, Oswald Niederkofler (both patent attorneys)

For Google

Quinn Emanuel Urquhart & Sullivan (Munich): Marcus Grosch, Andreas Ruster

Regional Court Düsseldorf, Civil Chamber 4b
Daniel Voss (presiding judge)

Regional Court Düsseldorf, Civil Chamber 4c
Sabine Klepsch (presiding judge)

Regional Court Mannheim, 2nd Civil Chamber
Holger Kircher (presiding judge)